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Wabasha County, Minnesota
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355641

WABASHA COUNTY SOLAR ENERGY SYSTEMS ORDINANCE

County Ordinance Number #89

Date of Adoption

March 19th, 2024

Wabasha County Board of Commissioners

Resolution No.: 2024-057

Whereas, a public hearing for the Wabasha County Solar Energy Systems Ordinance #89 was held on February 26, 2024 and the matter has been reviewed by the Planning Commission.

Whereas, The Wabasha County Planning Commission recommends that the attached Wabasha County Solar Energy Systems Ordinance #89 in "Exhibit A" be adopted.

Now Therefore be it Resolved by the Wabasha County Board of Commissioners that, it approves the Wabasha County Solar Energy Systems Ordinance #89 as presented in "Exhibit A". Planning and Zoning is to publish an overview of the ordinance in the County's Officially recognized newspaper and then shall record the document at the County Recorder's Office with the proof of publication.

Adopted this 19th day of March, 2024 by the Wabasha County Board of Commissioners.

By: 
Board Chair

Attest:
By: 
Board Clerk

WABASHA COUNTY SOLAR ENERGY SYSTEMS ORDINANCE

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Contents

SECTION 1 TITLE, REPEALER	2
SECTION 2 PURPOSE	2
SECTION 3 JURISDICTION	2
SECTION 4 INTERPRETATION	2
SECTION 5 DEFINITIONS	2
SECTION 6 PROCEDURES	4
6.1 PERMIT APPLICATION.....	4
6.2 ACCESSORY SOLAR SYSTEMS	5
A. APPLICATION REQUIREMENTS	5
6.3 PERFORMANCE STANDARDS FOR ACCESSORY SOLAR SYSTEMS	6
A. HEIGHT	6
B. SETBACKS	6
C. COMPLIANCE WITH STATE ELECTRIC CODE	6
D. SOLAR COMPONENTS.....	7
6.4 COMMERCIAL SOLAR ENERGY SYSTEMS.....	7
A. APPLICATION REQUIREMENTS.....	7
6.5 PERFORMANCE STANDARDS FOR COMMERCIAL SOLAR ENERGY SYSTEMS.....	8
A. LOT SIZE.....	9
B. STORMWATER MANAGEMENT AND EROSION AND SEDIMENT CONTROL.....	9
C. FOUNDATIONS	9
D. OTHER STANDARDS AND CODES.....	10
E. POWER AND COMMUNICATION LINES	10
F. GLARE	10
G. VEGETATION MANAGEMENT.....	10
H. SETBACKS	11
I. SCREENING/AESHETICS.....	12
J. DISCONTINUATION, DECOMMISSIONING AND RESTORATION	12
K. STRAY VOLTAGE.....	14
L. DEVELOPER’S AGREEMENT	15

SECTION 1 TITLE, REPEALER

- 1.1 The title of this ordinance is the Wabasha County Solar Energy Systems Ordinance, and will be referred herein as “THE ORDINANCE”.
- 1.2 The adoption of this Ordinance shall not effect nor prevent any pending or future prosecution or legal action to abate, any existing violation of the previous Wabasha County Zoning Ordinance Chapter 10 Section 10.08 provided the violation is also a violation of this Ordinance.

SECTION 2 PURPOSE

- 2.1 PURPOSE - This ordinance is established to regulate the installation and operation of Solar Energy Systems within Wabasha County.

SECTION 3 JURISDICTION

- 3.1 JURISDICTION - The jurisdiction of this Ordinance shall apply to all areas of Wabasha County outside of incorporated municipalities.

SECTION 4 INTERPRETATION

- 4.1 INTERPRETATION - This Ordinance, shall at a minimum, promote and protect the public health, safety, and general welfare. Where the provisions of this Ordinance impose greater restrictions than those of any statute, ordinance or regulations, the provisions of this Ordinance shall be controlling. Where the provisions of any statute, ordinance or regulation impose greater restrictions than this Ordinance, the provisions of such statute, other ordinance or regulation shall be controlling.

SECTION 5 DEFINITIONS

5.1 DEFINITIONS - For the purpose of this Ordinance, the following terms shall have the meaning given to them in this section. To the extent a term is used in this Ordinance is not defined in this section, the term shall have the meaning given in the Wabasha County Zoning Ordinance. Words not specifically defined herein or in the Wabasha County Zoning Ordinance shall have the meaning as found in Webster's Collegiate Dictionary.

1. Array (Solar) – Any number of solar collectors connected together to provide a single electrical output.
2. Dual Axis Solar Tracker - dual axis trackers collect energy from the sun from the East, West, North, and South angles. They function on two axes – 'primary' and 'secondary'. One axis helps the solar tracker to move from East to West, and the other helps the tracker to move from North to South.
3. Fixed Tilt - A photovoltaic array set in at a fixed angle with respect to horizontal.
4. Interconnection - The linkage of transmission lines between two utilities, or between a utility and an end-user, enabling power to be moved in either direction.
5. Interconnection Agreement- A contract between the owner or operator of a solar energy system, and utility company, governing connection between the solar energy system and power grid.
6. Inverter – Inverters are equipment that converts the type of electricity generated by the solar panels as direct current (DC) into electricity that can be used in your home- as alternating current (AC).
7. Kilowatt (kW) – A unit of electrical power equal to 1,000 watts.
8. Megawatt (MW) – A unit of electrical power equal to 1,000 kW or 1 million watts.
9. Panels – Groups of solar cells that convert sunlight into electrical energy in the form of direct current or DC.
10. Photovoltaic (PV) - A technology that uses a semiconductor (such as silicon) to convert sunlight directly into electricity.
11. Single Axis Solar Tracker - A single-axis solar tracking system uses a tilted photovoltaic (PV) panel mount and one electric motor to move the panel on an

approximate trajectory relative to the Sun's position. The rotation axis can be horizontal, vertical, or oblique.

12. Solar Energy System - A set of devices whose primary purpose is to collect solar energy, and convert and store it for useful purposes including heating and cooling buildings, or other energy-using process, or to produce generated power by means of any combination of collecting, transferring, or converting solar-generated energy.
 - a. Accessory Solar Energy System - A solar energy system with a total name plate capacity equal to or fewer than 40 kilowatts provided that a majority of the energy generated by the system serves the structures and facilities permitted on the respective property.
 - b. Commercial Solar Energy System – A solar energy system with a total name plate capacity of greater than 40 kW AC and shall have a conditional/interim use permit issued by Wabasha County prior to construction.
13. Total Nameplate Capacity – The total of the maximum rated output of the electrical power production equipment for a solar energy project.
14. Tracking Solar Array – A solar array that follows the path of the sun during the day to maximize the solar radiation it receives.
15. Underwriters Laboratory (UL) – An internationally recognized product safety and certification organization that sets industry-wide standards for new products. UL testing ensures that wire sizes are correct and that electronics devices can handle the amount of current claimed by the manufacturer.
16. Watt – A unit of measurement of electric power.

SECTION 6 PROCEDURES

6.1 PERMIT APPLICATION

Solar energy systems equal to or less than a total nameplate capacity of 40 kilowatts (kW) AC are considered accessory solar energy systems provided that a majority of the energy generated by the solar energy system serves the structures and facilities permitted on the respective property. Accessory solar systems shall have a Building and Land Use permit issued prior to construction.

Solar energy systems that are greater than a total nameplate capacity of 40 kilowatts (kW) AC are considered to be Commercial Solar Energy Systems and shall have a conditional/interim use permit issued by Wabasha County prior to construction. Conditional Use Permits shall be applied for and reviewed under the procedures established in the Wabasha County Zoning Ordinance and Minnesota Statutes Chapter 394, except where noted below.

6.2 ACCESSORY SOLAR SYSTEMS

A. APPLICATION REQUIREMENTS

An application to Wabasha County for a permit under this section shall not be considered complete unless it contains the following information, including but not limited to:

1. The name(s) and address(es) of all project applicant(s).
2. The name(s) and address(es) of the project land owner(s).
3. The legal description(s) of all properties within the project boundary.
4. A description of the project including: Number, type, total name plate generating capacity, site plan showing parcel and building dimensions, driveways, access roads, parking, off-street loading areas, utilities, and means of interconnecting with the electrical grid.
5. Site layout, including the location of project area boundaries (purchased and leased rights), property lines, roads, electrical wires, interconnection points with the electrical grid, and all related accessory structures. The site layout shall include distances and be drawn to scale.
 - a. An aerial photo or site design showing all Project Parcels, participating Parcels, and Non-Participating Parcels located within 100 feet of any boundary of a Project Parcel.
 - b. The location and description of all structures located on Project parcels, Participating Parcels and any Non Participating Parcel located within 100 feet of any boundary of a Project Parcel.
6. Documentation of land ownership or legal control of the property and current land use on the site and surrounding area.

7. Signed copy of the Power Purchase Agreement or documentation that the owner has notified the utility company of the customer's intent to install an interconnected customer-owned generator. Off grid systems are exempt from this requirement.

8. Location of wetlands, and natural areas including bluff impact zones or shoreland impact zones within a one hundred fifty (150) foot radius of the proposed solar array.

9. Copies of all permits or documentation that indicates compliance with all other applicable State and Federal Regulatory Standards including, but not limited to:

a. The Minnesota State Building Code, as amended.

b. The Minnesota State Electrical Code, as amended.

c. The Minnesota Pollution Control Agency (MPCA)/Environmental Protection Agency (EPA), as amended.

6.3 PERFORMANCE STANDARDS FOR ACCESSORY SOLAR SYSTEMS

A. HEIGHT

1. Building or roof-mounted solar energy systems shall not exceed the maximum allowed height in any zoning district. For purposes of height measurement, solar energy systems other than building-integrated systems shall be considered to be mechanical devices and are restricted consistent with other building-mounted mechanical devices for the zoning district in which the system is being installed.
2. Ground or pole mounted solar systems shall not exceed twenty (20) feet in height when oriented at maximum tilt.

B. SETBACKS

1. Solar energy systems, either ground or roof mounted, with a total nameplate capacity equal to or less than 40 kilowatts (kW) are an accessory structure and must meet the required accessory structure property line setback for the zoning district in which it is located.

C. COMPLIANCE WITH STATE ELECTRIC CODE

1. All photovoltaic systems shall comply with the Minnesota State Electric Code.

D. SOLAR COMPONENTS

1. Electric solar energy system components must have an Underwriter Laboratory (UL) listing.

6.4 COMMERCIAL SOLAR ENERGY SYSTEMS

A. APPLICATION REQUIREMENTS

An application to Wabasha County for a permit under this section shall not be considered complete unless it contains the following information, including but not limited to:

1. If required, a letter from the State Agency responsible for size determination of a project, pursuant to Minnesota Statutes, Chapter 216E.021, as amended.
2. The names and addresses of project applicant.
3. The names and addresses of the project and land owner(s).
4. The legal description(s) and address(es) of the project.
5. A description of the project including: Number, type, total name plate generating capacity, height, dimensions, total height of all panels, and means of interconnecting with the electrical grid.
 - a. An aerial photo showing all project parcels, participating parcels, and Non-Participating Parcels located within ½ mile of any boundary of a Project Parcel.
 - b. The location and description of all structures located on Project parcels, Participating Parcels and any Non Participating Parcel located within ½ mile of any boundary of a Project Parcel.
6. Site layout, including the location of project area boundaries (land rights purchased, leased, or acquired by easement), property lines, roads, structures, electrical wires, interconnection points with the electrical grid, and all related accessory structures. The site layout shall include distances and be drawn to scale.

7. Documentation of land ownership or legal control of all property within a project boundary and current land use on the site and surrounding area.
8. Signed copy of the Power Purchase Agreement or documentation that the power will be utilized on-site.
9. A USGS topographical map, or map with similar data, of the property and surrounding area.
10. Location of wetlands, scenic and natural areas including bluffs within a one (1) mile radius of the proposed facility and location of historic sites within a two (2) mile radius as listed by Minnesota's State Historic Preservation Office or the National Register of Historic Places.
11. Copies of all permits or documentation that indicates compliance with all other applicable State and Federal Regulatory Standards including, but not limited to:
 - a. Minnesota State Building Code, as amended.
 - b. The Minnesota State Electrical Code, as amended.
 - c. Minnesota Pollution Control Agency (MPCA)/Environmental Protection Agency (EPA), as amended.
12. Location of all known public or private Airports or Heliports within a five (5) mile radius of the proposed commercial solar energy system.
13. Detailed Decommissioning Plan including how decommissioning costs would be covered.
14. Identification of any and all Haul Routes to be utilized for material transportation and construction activities including State, Federal, County, Township, or private roads within Wabasha County.
15. Locations and site plans for all temporary, non-residential construction sites and staging areas.

6.5 PERFORMANCE STANDARDS FOR COMMERCIAL SOLAR ENERGY SYSTEMS

A. LOT SIZE

The lot parcel/tract upon which a Commercial Solar Energy System is located shall adequately handle the stormwater produced by the impervious surface of the panels, and meet all applicable setbacks without the need for a variance, but no less than the minimum lot size of the zoning district in which it is located.

B. STORMWATER MANAGEMENT AND EROSION AND SEDIMENT CONTROL

1. Erosion Prevention and Sediment Control Plans must be submitted that identify the practices to be implemented during pre-construction, construction, and post construction phases.
2. All stormwater generated on site shall be routed to stormwater basins prior to discharge.
3. Field soils evaluations shall be required to be completed to determine the type and size of stormwater treatment pond(s) required as part of the application submittal for a commercial solar energy system. During the time of year when soil evaluations cannot be completed, the solar site shall be sized to accommodate filtration rather than infiltration.
4. The contractor shall provide proof of coverage under the MPCA's stormwater permit to Planning & Zoning with the Building and Land Use Permit application prior to land disturbing activities.
5. A performance bond or irrevocable letter of credit in the amount of \$20,000 shall be submitted to Planning & Zoning for the purpose of addressing any issues from correcting non-functioning basins or long-term maintenance activities. The project owner is responsible for all issues with, and long-term maintenance of the stormwater facilities. The bond/ irrevocable letter of credit shall be active and maintained for the permitted "project life" as indicated in the CUP application.
6. A grading plan shall be submitted to the Zoning Administrator with the materials for the building & land use permit application. Grading shall only be conducted for site access and leveling of the project area. Topsoil shall not be stripped from the project site and stockpiled. The grading plan shall be approved by the Zoning Administrator prior to the start of any construction.

C. FOUNDATIONS

The manufacturer's engineer or another qualified engineer shall certify that the foundation and design of the solar panels are within accepted professional standards, given local soil and climate conditions.

D. OTHER STANDARDS AND CODES

All Commercial Solar Energy Systems shall be in compliance with any applicable local, state and federal regulatory standards, including the State of Minnesota's Uniform Building Code, as amended; and the National Electric Code, as amended.

E. POWER AND COMMUNICATION LINES

Power and communication lines running between banks of solar energy panels and to electric substations or interconnection from the solar array to the Right-of-way (ROW) shall be buried under ground.

Power and communication lines for the purpose of transporting energy from the solar farm are considered Essential Services and are defined under Chapter 2.63 of the Wabasha County Zoning Ordinance.

F. GLARE

Commercial Solar Energy Systems shall not be permitted in areas where glare or reflection poses a risk to airports or traffic on public roadways. In addition, Commercial Solar Energy Systems shall not be permitted in areas where glare or reflection poses a nuisance to nearby receptors unless there is the ability to adequately mitigate the impacts through screening or other methods. Glare studies shall be required as part of the application to evaluate impacts to:

1. Public and/or private airports located within 5 miles of the proposed array (when present)
2. Two-way car and truck traffic on roads within a 1-mile radius of the proposed array
3. All receptors within a 2-mile radius of the proposed array

G. VEGETATION MANAGEMENT

Vegetation planned for the Commercial Solar Energy Systems area shall be planted and managed to promote successful establishment, meet the pollinator-friendly vegetation standard established by Minn. Stat. Section 216B.1642, Subd. 1 & 2, and prevent and control noxious/invasive weeds and any cool season grasses on site and to prevent from spreading to surrounding properties.

Seeding shall occur within one year of connecting the solar garden to the electrical grid. A seed mix and maintenance plan for the native vegetation shall be approved by the Zoning Administrator prior to the start of any construction. The maintenance plan shall provide a

schedule summarizing the specific planned maintenance activities and shall address how problematic weed species will be controlled in detail. Applicants will be required to follow the maintenance plan they submit. If proper maintenance of the site is not achieved as observed by County Staff the Conditional Use Permit will be reviewed and should it be necessary, revoked.

H. SETBACKS

Commercial Solar Energy Systems shall meet the following setbacks:

1. 200 feet from dwellings and other sensitive receptors
 2. 50 feet from property lines
 3. 50 feet from interstate, state, and county road rights of ways or greater distance when required by the road authority
 4. 60 feet from wetlands, unless it meets all exemption requirements of items “a” listed below:
 - a. The posts for pole mounted solar panels are exempt from wetland setback standards for “structures” as defined in this Ordinance, provided:
 - i. The post is installed by driving the post into the soil and is not secured by concrete pier or foundation; and
 - ii. The wetland is classified as “PC” or “Prior Converted” by the Farm Service Agency and has been planted with annually seeded crops or was in a crop rotation seeding of pasture grass or legumes six of the last 10 years; and
 - iii. The impacts are approved in accordance with the Minnesota Wetland Conservation Act Rules.
- This exemption does not apply to other Structures that are part of the solar energy system, including but not limited to, transformers, service buildings, gates, inverters, and other related Structures. A wetland delineation shall be submitted as part of the application to determine the appropriate setback.
5. 100 feet from the Ordinary High Water Level (OHWL)

6. 50 feet from other watercourses, ditches, and county tile mains
7. The interconnection shall be the farthest away possible point from neighboring feedlots
8. Prohibited in the Floodplain District
9. Prohibited in the Agriculture/ Low Density District (A-3) and the Rural Residential District (R-1).

Agricultural parcels located adjacent to existing cities which have a valid annexation agreement with the township in the area proposed for the array must obtain approval from the city to proceed with an application for a solar farm in order for the applicant to be accepted by the Department.

I. SCREENING/AESHETICS

The applicant shall submit a visual impact analysis as part of the application to assist in any required screening plan. The analysis shall be of sufficient detail to provide the Planning Commission and County Board a visual representation of the site as viewed from the public roadways and neighboring receptors.

Screening may include earthen mounds/berms/ neutral colored fences, or landscaping of 80% opacity prior to energizing of the solar facility. Any screening plan must be submitted as part of the application and approved by the Planning Commission and County Board.

Three rows of vegetation planted at minimum 200 FT setback from the edge of the road. The rows will be spaced 16 FT, 10 FT and 8 FT off center apart. The first two rows closest to the road will be shrubs to achieve a mature height of 8-15 FT and the third row will be evergreens to achieve a mature height of 20 FT. Tree and shrub selection should be based on site conditions and species native to the area where the project is being constructed. Invasive tree or shrub species shall not be used for vegetative screening. Trees and shrubs should be used when they have a limited risk of spreading into the prairie portion of the site and prairies in the surrounding landscape.

J. DISCONTINUATION, DECOMMISSIONING AND RESTORATION

1. DISCONTINUATION – A Commercial Solar Energy System shall be considered a discontinued use after one (1) year without production of energy, unless a plan is

developed and submitted to the Zoning Administrator outlining the steps and schedule for returning the array to service.

2. DECOMMISSIONING PERIOD - All panels, arrays and accessory facilities shall be removed within six (6) months of the discontinuation of use.

3. DECOMMISSIONING AND RESTORATION REQUIREMENTS

- a. Dismantling and removal of all arrays and costs associated with recycling of the panels. Landfilling of panels at the end of life is prohibited unless recycling is not a viable option. Economics between landfilling and recycling is not considered in determining whether or not recycling is viable.
- b. Removal of all underground cables, conduits, and components
- c. Removal of structures and foundations
- d. Restoration and reclamation to the same general topography and vegetation that existed pre-solar installation
- e. Removal of any roads.

4. DECOMMISSIONING AND RESTORATION PLAN - All Commercial Solar Energy Systems shall submit a Decommissioning and Restoration Plan as part of the project application. The cost estimate for decommissioning shall be made by a competent party, such as a professional engineer, a contractor capable of decommissioning or a person with suitable expertise or experiences with decommissioning. The plan shall include the following information:

- a. The manner in which the project will be decommissioned and the site restored.
- b. The anticipated life of the project.
- c. The estimated cost of decommissioning in current dollars not including anticipated salvage value
- d. The Decommissioning and Restoration Plan shall identify the party financially responsible for carrying out the requirements of the Decommissioning and Restoration Plan. The plan shall include a description of how the financially responsible party plans to pay for the decommissioning and restoration.

5. DECOMMISSIONING FINANCIAL ASSURANCE

- a. After issuance of the CUP and prior to construction, the permittee shall issue an irrevocable letter of credit or a cash deposit in the amount according to the tiered decommissioning sums listed in the table below to finance the Decommissioning and Restoration plan of the Commercial Solar Energy System.

Megawatts of Solar Energy System	Required Financial Assurance
1.0 Megawatts or less	\$250,000
1.01 to 1.49 MW	\$300,000
1.5 to 1.99 MW	\$350,000
2.0 to 2.49 MW	\$400,000
2.5 to 2.99 MW	\$450,000
3.0 to 3.99 MW	\$500,000
4.0 to 4.99 MW	\$550,000
5.0 to 5.99 MW	\$600,000

*After 5.99 MW, the amount of surety will increase \$50,000 per every additional half megawatt

- b. The irrevocable letter of credit issued to Wabasha County shall contain language requiring automatic renewal prior to December 31st of each calendar year, unless Wabasha County specifically approves cancellation of the irrevocable letter of credit in writing.
- c. In the event the developer or its successors in interest provides the County with a cash deposit, the County agrees it will credit interest to the cash deposit. The interest shall be calculated at the bank rate obtained by Wabasha County in the same manner as the bank pays interest to the County.
- d. FAILURE TO DECOMMISSION - If the financially responsible party of a solar energy farm does not complete the Decommissioning and Restoration Plan, Wabasha County may take such action as may be necessary to complete decommissioning, including but not limited to, requiring forfeiture of the financial assurance or assessment of the cost of decommissioning against the land. The issuance of the Conditional Use Permit shall constitute agreement and consent by all parties to the agreement, including their respective heirs, successors, and assigns, that Wabasha County may take such action as may be necessary to decommission the solar farm and adequately restore the site, including the exercise by the county, county staff, and their contractors of the right of ingress and egress for the purpose of decommissioning the solar farm and restoring the property.

K. STRAY VOLTAGE

Testing for stray voltage that is a result of the project shall be conducted prior to the start of construction, three months after connection to the electrical grid, and completed annually for three years after connection to the electrical grid. After that point, it shall be completed once every five years. The results from such testing shall be submitted to the Wabasha County Zoning Department within 30 days of testing. The costs for such testing shall be paid for by the developer. If any problem with stray voltage is discovered within a two mile radius of the development, the solar garden shall cease operation until the stray voltage issue has been resolved.

L. DEVELOPER'S AGREEMENT

As part of the conditions for all solar energy farms, Wabasha County shall require all applicants and property owners to enter into an agreement with the county for protection from the developer and property owner of all public infrastructure and to require security for the ongoing maintenance of the site during the permit, and for the decommissioning and reclaiming of the property. Prior to receiving an application for a building permit or making any improvements to the property the applicant and property owner shall enter into a contract in writing with the County requiring the applicant to indemnify the County for damage to any public improvements or infrastructure at the applicant's sole cost and in accordance with the County's specifications and usual contract conditions. An agreement between the developer of a solar energy farm and Wabasha County shall be entered into setting forth and memorializing for the parties and subsequent owners, the understandings and covenants of the parties concerning the development of a solar energy farm and the conditions imposed thereon.



WABASHA COUNTY ZONING DEPARTMENT

625 Jefferson Avenue
Wabasha, MN 55981

Ph: 651-565-3062 Fax: 651-565-3159

NOTICE OF PUBLIC HEARING BEFORE THE WABASHA COUNTY PLANNING COMMISSION

The Wabasha County Planning Commission will conduct a public hearing starting at 7:00 p.m. on February 26th, 2024 for the purpose of hearing any testimony regarding the following requests:

- 1) Public hearing for proposed amendments to Chapters 4.05 (2), 5.05 (2), and 6.05 (2) of the Wabasha County Zoning Ordinance. These sections address the lot size and land division requirements for their respective zoning districts. The proposed language is intended to clarify the acreage requirements for deed restrictions where there is a difference between the minimum allowable size of a parcel that would allow for a dwelling and the parcel being created.
- 2) Public hearing for the creation of an ordinance to regulate the installation and operation of solar energy systems within Wabasha County. The proposed ordinance is to be named the Wabasha County Solar Energy Ordinance.

The public hearing will take place in the County Board Room, Courthouse Annex, 625 Jefferson Avenue, Wabasha, Minnesota. Any interested person may provide testimony whether in person or by way of written comment submitted to the Wabasha Zoning Department. Written comments will be read into the record during the respective public hearing.

Any questions regarding this matter should be directed to the Wabasha County Zoning Department. You can contact the Zoning Department by phone at 651-565-3062, or by email at jkaltenbach@co.wabasha.mn.us.

Respectfully,
Wabasha County Planning Commission

AFFIDAVIT OF PUBLICATION
THE WABASHA COUNTY HERALD

State of Minnesota }
County of Wabasha } ss.

Michael T. Stumpf being duly sworn, on oath say that they are the publishers of the newspaper known as THE WABASHA COUNTY HERALD, and have full knowledge of the facts which are stated below: (A) The newspaper has complied with all of the requirements constituting qualification as a qualified newspaper, as provided by Minnesota Statute 331A.02, 331A.07, and other applicable laws, as amended. (B) Mortgage Foreclosure Notices [Effective 7/1/15]. Pursuant to Minnesota Statutes §580.033 relating to the publication of mortgage foreclosure notices: The newspaper's known office of issue is located in WABASHA County. The newspaper complies with the conditions described in §580.033, subd. 1, clause (1) or (2). If the newspaper's known office of issue is located in a county adjoining the county where the mortgaged premises or some part of the mortgaged premises described in the notice are located, a substantial portion of the newspaper's circulation is in the latter county. (C) The printed Notice of Public Hearing - 02.26.24

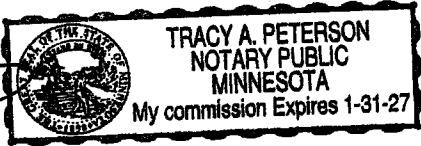
which is attached was cut from the columns of said newspaper, and was printed and published once each week, for 1 successive weeks, it was first published on Tuesday, the 13th day of February, 2024, & was thereafter printed and published on every Tuesday to and including Tuesday, the 13th day of February, 2024; and printed below is a copy of the lower case alphabet from A to Z which is hereby acknowledged as being the size and kind of type used in the composition and publication of the notice:

abcdefghijklmnopqrstuvwxyz

BY: *Michael Stumpf*
Publisher

Subscribed and sworn to before
me on this 13th day of
February, 2024

Tracy A. Peterson
Notary Public,
Wabasha, Minnesota



RATE INFORMATION

- | | |
|---|------------------|
| 1) Lowest classified rate paid by commercial users for comparable space | \$12.25 per inch |
| 2) Maximum rate allowed by law for the above matter | \$10.20 per inch |
| 3) Rate actually charged for the above matter | \$10.20 per inch |

NOTICE OF PUBLIC HEARING

The Wabasha County Planning Commission will conduct a public hearing starting at 7:00 p.m. on February 26th, 2024 for the purpose of hearing any testimony regarding

1) Public hearing for proposed amendments to Chapter 6.05 (2) of the Wabasha County Zoning Ordinance

These amendments affect the lot size and lot area of the minimum lot area for the zoning district. The proposed amendments are intended to clarify the minimum lot area where there is a difference between the minimum allowable size of a parcel that would allow for a dwelling and the parcel being worked.

2) Public hearing for the creation of an ordinance to regulate the installation and operation of solar energy systems within Wabasha County. The proposed ordinance is to be named the Wabasha County Solar Energy Ordinance.

The public hearing will take place in the County Board Room, Courthouse Annex, 625 Jefferson Avenue, Wabasha, Minnesota. Any interested person may provide testimony, whether in person or by way of written comments submitted to the Wabasha Zoning Department. Written comments will be read into the record during the respective public hearing.

Any questions regarding this matter should be directed to the Wabasha County Zoning Department. You can contact the Zoning Department by phone at 631-363-3062, or by email at jkaltenbach@co.wabasha.mn.us.

Respectfully,
Wabasha County Planning Commission
February 13, 2024

NOTICE OF ADOPTION

OF THE WABASHA COUNTY SOLAR ENERGY ORDINANCE

Notice is hereby given that a public hearing was held by the Wabasha County Planning Commission in the County Board Room, 625 Jefferson Avenue, Wabasha, Minnesota on February 26, 2024 on the proposed Wabasha County Solar Energy Ordinance and on March 19, 2024 the Wabasha County Board of Commissioners voted by a majority vote to adopt such ordinance. This Ordinance is intended to regulate the installation and operation of solar energy systems within Wabasha County and to promote and protect the public health, safety, and general welfare. It should be noted that this publication is only a summary and that the full text of revisions is available for public inspection on the County website at www.co.wabasha.mn.us or can be viewed in the Office of the Wabasha County Auditor/Treasurer. This Ordinance shall become effective upon publication of this notice.

AFFIDAVIT OF PUBLICATION
THE WABASHA COUNTY HERALD

State of Minnesota }
County of Wabasha } ss.

Michael T. Stumpf being duly sworn, on oath say that they are the publishers of the newspaper known as THE WABASHA COUNTY HERALD, and have full knowledge of the facts which are stated below: (A) The newspaper has complied with all of the requirements constituting qualification as a qualified newspaper, as provided by Minnesota Statute 331A.02, 331A.07, and other applicable laws, as amended. (B) Mortgage Foreclosure Notices [Effective 7/1/15]. Pursuant to Minnesota Statutes §580.033 relating to the publication of mortgage foreclosure notices: The newspaper's known office of issue is located in WABASHA County. The newspaper complies with the conditions described in §580.033, subd. 1, clause (1) or (2). If the newspaper's known office of issue is located in a county adjoining the county where the mortgaged premises or some part of the mortgaged premises described in the notice are located, a substantial portion of the newspaper's circulation is in the latter county.

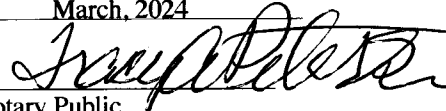
(C) The printed Notice of Adoption of County Solar Energy Ordinance

which is attached was cut from the columns of said newspaper, and was printed and published once each week, for 1 successive weeks, it was first published on Tuesday, the 26th day of March, 2024, & was thereafter printed and published on every Tuesday to and including Tuesday, the 26th day of March, 2024; and printed below is a copy of the lower case alphabet from A to Z which is hereby acknowledged as being the size and kind of type used in the composition and publication of the notice:

abcdefghijklmnopqrstuvwxyz

BY: 
Publisher

Subscribed and sworn to before
me on this 26th day of
March, 2024


Notary Public,
Wabasha, Minnesota



RATE INFORMATION

- | | |
|---|------------------|
| 1) Lowest classified rate paid by commercial users for comparable space | \$12.25 per inch |
| 2) Maximum rate allowed by law for the above matter | \$10.20 per inch |
| 3) Rate actually charged for the above matter | \$10.20 per inch |

